



NOTICE OF TEXT

[Authority G.S. 150B-21.2(c)]

OAH USE ONLY

VOLUME:

ISSUE:

CHECK APPROPRIATE BOX:

- ☒ Notice **with** a scheduled hearing
☐ Notice without a scheduled hearing
☐ **Republication of text.** Complete the following cite for the volume and issue of previous publication, as well as blocks 1 - 4 and 7 - 13. If a hearing is scheduled, complete block 5.
Previous publication of text was published in Volume: Issue:

1. Rule-Making Agency: Department of Natural and Cultural Resources
2. Link to agency website pursuant to G.S. 150B-19.1(c): https://www.ncdcr.gov/
3. Proposed Action — Check the appropriate box(es) and list <u>rule citation(s)</u> beside proposed action: ☒ ADOPTION: 07 NCAC 13H .0404 ☐ READOPTION <u>with</u> substantive changes: ☐ READOPTION <u>without</u> substantive changes: ☐ AMENDMENT: ☐ REPEAL:
4. Proposed effective date: July 1, 2018
5. Is a public hearing planned? ☒ Yes ☐ No If yes: Public Hearing date: April 24, 2018 Public Hearing time: 11 a.m. Public Hearing Location: Department of Natural and Cultural Resources 109 E. Jones Street, Auditorium (1st Floor) Raleigh, North Carolina 27601
6. If no public hearing is scheduled, provide instructions on how to demand a public hearing:

7. Explain Reason For Proposed Rule(s):

07 NCAC 13H .0404 will establish the fees authorized by N.C. Gen. Stat. § 143B-135.272 to defray the costs associated with responding to inquiries requiring customized environmental review services and developing, improving, or maintaining technology that supports an online interface for external users to access Natural Heritage Program data.

8. Procedure for Subjecting a Proposed Rule to Legislative Review: If an objection is not resolved prior to the adoption of the rule, a person may also submit written objections to the Rules Review Commission. If the Rules Review Commission receives written and signed objections in accordance with G.S. 150B-21.3(b2) from 10 or more persons clearly requesting review by the legislature and the Rules Review Commission approves the rule, the rule will become effective as provided in G.S. 150B-21.3(b1). The Commission will receive written objections until 5:00 p.m. on the day following the day the Commission approves the rule. The Commission will receive those objections by mail, delivery service, hand delivery, or facsimile transmission. If you have any further questions concerning the submission of objections to the Commission, please call a Commission staff attorney at 919-431-3000.

☐ Rule(s) is automatically subject to legislative review. Cite statutory reference:

9. The person to whom written comments may be submitted on the proposed rule(s):

Name: Rodney Butler

Address:

Natural Heritage Program
1651 Mail Service Center
Raleigh, NC 27699-1651

Phone (optional): 919-707-8603

Fax (optional):

E-Mail (optional): rodney.butler@ncdcr.gov

10. Comment Period Ends: May 14, 2018

11. Fiscal impact (check all that apply).

If this form contains rules that have different fiscal impacts, list the rule citations beside the appropriate impact.

- ☒ State funds affected
- ☐ Environmental permitting of DOT affected
Analysis submitted to Board of Transportation
- ☐ Local funds affected
- ☐ Substantial economic impact (≥\$1,000,000)
- ☒ Approved by OSBM
- ☐ No fiscal note required by G.S. 150B-21.4
- ☐ No fiscal note required by G.S. 150B-21.3A(d)(2)

12. Rule-making Coordinator:

Phil Feagan

Address:

4601 Mail Service Center
Raleigh, North Carolina 27601

Phone: 919-807-7447

E-Mail: phil.feagan@ncdcr.gov

Agency contact, if any:

Phone:

E-mail:

13. The Agency formally proposed the text of this rule(s) on

Date: February 21, 2018

14. Signature of Agency Head* or Rule-making Coordinator:

*If this function has been delegated (reassigned) pursuant to G.S. 143B-10(a), submit a copy of the delegation with this form.

Typed Name: Phillip H. Feagan

Title: General Counsel and Interim Rule-making Coordinator, DPCR